

HOUSE No. 3483

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia A. Duffy, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act halting close proximity antennas and higher frequencies to enforce RadLimits.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kirstin Beatty</i>	<i>149 Central Park Drive, Holyoke, MA 01040</i>	<i>1/16/2025</i>

HOUSE No. 3483

By Representative Duffy of Holyoke (by request), a petition (accompanied by bill, House, No. 3483) of Kirstin Beatty for legislation to establish the radiation regulatory agency.
Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act halting close proximity antennas and higher frequencies to enforce RadLimits.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The legislature finds and confirms all of the following:-

2 Whereas, federal telecommunications law recognizes the right of states to “impose, on a
3 competitively neutral basis” requirements to protect public safety and welfare (47 U.S. Code §
4 253).

5 Whereas, “promoting safety of life and property” is one purpose of the Federal
6 Communications Commission (FCC) in supporting wire and radio communication service, the
7 other being national defense (47 U.S. Code § 151).

8 Whereas, the FCC lost a procedural case highlighting its failures in pronouncing current
9 wire and radio communication service safe despite substantive research and docket commentary
10 to the contrary (Environmental Health Trust, et al. v. Federal Communications Commission,
11 Nos. 20-1025 and 20-1138), yet has snubbed the court directive by refusing to respond to
12 scientific criticism.

Whereas, non-ionizing radiation exposures have exponentially increased since 2010 from FCC new frequency band auctions, fast-track approval of tens of thousands of 5G satellites, regulations designed to bypass municipal zoning, outdated exposure guidelines, and allowances for cell tower antennas on street lights and other nearby installations.

Whereas, NASA, the Department of Defense, scientists, and other stakeholders have warned that the use of new higher frequency bands risks destroying functionality of weather forecasting, GPS, railroads scheduling, critical astronomy, aviation, cybersecurity, and utility infrastructure communications.

Whereas, scientific experts warn that the FCC has failed to recognize that new technologies and permitted uses are causing extremely high exposures that can exceed the FCC's own guidelines to limit heating.

Whereas, heating of bees and other insects rises alongside higher frequencies beginning from 6 GHz – hence, the use of millimeter waves and other high frequencies for 5G is harmful to pollination, soil, and life (Thielens et al., Exposure of Insects to Radio-Frequency Electromagnetic Fields from 2 to 120 GHz, Scientific Reports, 2018).

Whereas, scientists have confirmed millimeter waves and other high frequencies can heat and damage skin even at levels within FCC guidelines (Neufeld and Kuster, 2018; Betzalel et al., 2017, 2018).

Whereas, the U.S. and other countries have used millimeter waves at high power to painfully disable opposition – hacking software systems could turn residential 5G antennas into weapons targeted at individuals or groups.

Whereas, even without including millimeter waves or high power density heating considerations, peer-reviewed research on pre-existing ambient non-thermal radiation shows increased cancer, dementia, learning disability, depression, infertility, autoimmune disease, pain, and other diseases, and that our most vulnerable populations include youth, the elderly, women, and infants.

Whereas, more than 1,200 studies show adverse effects to wildlife including fertility, survival, nesting, and migration as listed in a 2021 review by Levitt, Lai, and Manville.

Resolved, that the policy goals of this act shall be to halt the use of ubiquitous street antennas, microcells, small cell networks, and frequencies that are 6 gigahertz plus, as well as any type of non-ionizing radiation exposure considered particularly dangerous to public and environmental health through establishing a review process, fines, regulation, monitoring, and education to promote safer wired services.

SECTION 2. Chapter 111 of the General Laws as appearing in the 2021 Official Edition, is hereby amended by inserting after Section 50 the following section:-

Section 50I. (a) Definitions. As used in this section, the following words shall have the following meanings:

“Small cell network” means a network consisting of one or more nodes connected, directly or indirectly, by fiber to a wireless service provider's mobile switching center or other point of interconnection.

“Microcells” are the largest and most powerful small cell, often installed by network operators on utility poles, traffic lights, and sign, and includes a “small wireless facility” as defined I 47 C.F.R. § 1.6002(l), as may be amended or superseded.

(b) The radiation control department shall include another sub-department, the radiation regulatory agency, hereafter called agency, to prepare and manage a timeline and process for the removal of wireless facilities and the use of frequencies deemed to be especially dangerous to health. The agency shall first focus efforts on the removal of microcells and the elimination of the use of frequencies above 6 GHz, especially the highest frequencies, and alongside these reductions in wireless exposure encourage safer wired connectivity. The agency shall expand to reduce emissions from other wireless sources when the initial specified sources are being or have been addressed. The agency may appoint and employ such engineers, accountants, bureau chiefs, lawyers, and other employees as required.

(c) The agency shall specify the submission form and set rolling deadlines for reporting by wireless facilities as specified by the agency. In a series of stages, the agency shall require that certain wireless facilities and frequencies be removed, and that a report be filed formally testifying to the removal or to the planned removal within the time frame allotted. As part of the reporting and review process, every wireless facility must file with the agency a report of its existence, frequencies utilized, purpose, location, distance relative to the public, and ownership, including names of permittee, board members, parent companies, and affiliates, and information regarding any removal of the wireless facility or specified frequency. All reports to the agency shall become part of a public historical record that shall include agency responses, be freely viewable by the public, and be utilized to create a searchable, public map of all wireless facilities.

The agency shall take a variety of steps to provide for a smooth transition.

(1) For public safety services, the agency shall set a timeline that allows for a transition to safer communication services.

(2) Where a utility uses connectivity that is vital for utility access or payment, the agency shall set a timeline that allows for a reasonable transition.

(3) If the agency finds that telecommunication access is or will be impaired by removing certain wireless facilities, the agency shall work with the state to provide access to wired connectivity, and may also encourage temporary wireless collocation or allow an individual wireless facility to temporarily remain until wired connectivity is set.

(4) Initial stages of microcell removal shall include (i) removal of microcells within 400 meters of homes; (ii) removal of microcells within 400 meters of sensitive areas including nurseries, kindergartens, hospitals, clinics, and nursing homes; (iii) removal of microcells in fire-prone areas; (iv) continuing removal of microcells on a larger scale as further specified by the agency.

(5) Initial stages for limits on frequencies above 6 gigahertz shall include (i) an initial testing in a selected town or city, examining feedback and results to improve and refine outcome; (ii) limits inside and within 400 meters of state parks and forests; (iii) limits in and within 400 meters of sensitive areas including nurseries, kindergartens, hospitals, clinics, and nursing homes; (iv) limits within 400 meters of homes; (v) continuing limits on a larger scale as further specified by the agency.

(6) The agency shall establish further steps towards eliminating particularly dangerous wireless exposure, whether based on polarization, pulsing, power density, or other aspect.

(d) Reporting and compliance with the agency reporting, deadlines, and directives is required. Failure to comply at any stage shall result in a fine of up to 3% of the prior year's income for all parties concerned, ensuing fines of up to \$1000 per day, and may include imprisonment twice the days of lapsed reporting or other non-compliance. Failure to comply shall also result in the loss of the permit and licensing of the respective wireless facility, with removal costs of the facility due alongside fines. The agency shall provide avenues for residents to report non-compliance.

(e) The agency shall have the equipment and engineers to verify field strength, frequencies, and types of exposure. The agency shall use this capability to verify exposures as pertaining to reporting and removal as described in subsections (c) and (d), and also shall utilize the equipment to conduct random and static exposure evaluations across the state for public and environmental health reporting and progress monitoring. In addition, the agency shall provide the technical support to make non-ionizing radiation part of indoor air quality reports and environmental health investigations within the bureau of climate and environmental health.

(f) Together with the radiation control department the agency shall also provide education regarding (1) safer alternatives to wireless; (2) especially dangerous non-ionizing radiation exposures; (3) types of wireless products to recognize and avoid.

(h) The agency may set fees for any review, certification, or filing requirements to cover its costs, and may set a sliding scale fee.

117 (i) The agency shall publish an annual public report of progress, obstacles, and needs that
118 shall be provided to the General Court.

119 SECTION 4. Chapter 93 of the General Laws, as appearing in the 2010 Official Edition,
120 is hereby amended by adding the following new section:-

121 Section 116. Because wireless is harmful to public and environmental health, a lessee of
122 property rented to a mobile services provider for a wireless facility providing personal wireless
123 services, streaming services, or information services may cancel the contract or agreement
124 without further penalty or obligation and also require removal of said wireless facility according
125 to the terms of the contract.